



CHAPTER 74.

An Act to provide for a coinage other than silver to be legal tender for payments up to forty shillings, and for consequential amendments of enactments relating to silver coin; to amend the law as to the fineness of silver coins of the King's Maundy monies; and to confer further powers as to the purchase of metal for coinage.
[6th November 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. A tender of payment of money, if made in coins of cupro-nickel which have been issued by the Mint in accordance with the provisions of this Act, and have not been called in by any proclamation made in pursuance of the Coinage Act, 1870 (in this Act referred to as "the principal Act"), shall be a legal tender for a payment of an amount not exceeding forty shillings, but for no greater amount.

Cupro-nickel coins to be legal tender for payments up to forty shillings.
33 & 34 Vict. c. 10.

2. All coins of cupro-nickel made at the Mint of the denominations mentioned in the Schedule to this Act shall be of the weight and composition specified in that Schedule, and if any coin of cupro-nickel but of any other denomination than that of the coins mentioned in that Schedule is hereafter coined at the Mint, such coin shall be of the same composition as current cupro-nickel coins and of a weight bearing the same proportion to the weight specified in that Schedule as the denomination of such coin bears to the denominations therein mentioned:

Weight and composition of cupro-nickel coins.

Provided that in the making of such coins a remedy (or variation from the standard weight and composition specified in that Schedule) shall be allowed not exceeding the remedy allowance therein specified.

Additional
powers
exercisable by
proclamation.

3. The powers exercisable by proclamation by virtue of section eleven of the principal Act shall include powers—

- (a) to diminish the remedy allowed by this Act in the case of any coin ;
- (b) to vary the provisions of the Schedule to this Act as to the composition of coins of cupro-nickel ;
- (c) to make as respects coins of a metal or mixture of metals other than cupro-nickel (whether or not including copper or nickel), not being of a denomination less than three-pence, which have been issued by the Mint in accordance with the provisions of the proclamation, the like provision as is made by section one of this Act, together with provision as to the weight and composition of such coins and the amount of remedy to be allowed in the making of such coins, so, however, that nothing in this paragraph shall be construed as authorising any variation of the provisions of the Coinage Acts, 1870 to 1920, as to coins of gold, silver or bronze.

Standard
trial plates.

4.—(1) The Board of Trade shall cause to be made and verified standard trial plates to be used for determining the justness of cupro-nickel coins issued from the Mint, or of coins so issued of any other metal or mixture of metals specified in any proclamation made under the power conferred by paragraph (c) of section three of this Act.

(2) The plates to be so used shall be, as respects coins of cupro-nickel, of pure copper and pure nickel, and, as respects coins of any other metal or mixture of metals, of such composition as may be prescribed by the proclamation under which the coins are made.

(3) Plates shall be made as aforesaid from time to time when necessary, and the provisions of section sixteen of the principal Act as to the custody and keeping of standard trial plates, and of books, documents and things used in connection therewith, and as to duties in relation thereto shall apply to plates made under this section.

Consequential
amendment of
enactments.
10 & 11 Geo. 5.
c. 70.
26 Geo. 5. &
1 Edw. 8.
c. 16.

5.—(1) The reference to silver coin in section two of the Gold and Silver (Export Control, etc.) Act, 1920, and all references to silver coin in the Coinage Offences Act, 1936, shall include a reference to coin of cupro-nickel and to coin of any other metal or mixture of metals specified in any proclamation made under the power conferred by paragraph (c) of section three of this Act, and accordingly such coin shall be excluded from the definition in section seventeen of the last-mentioned Act of "copper coin."

(2) The reference to silver coin in subsection (2) of section three of the Currency and Bank Notes Act, 1928 (which relates to the inclusion of silver coin in the cover for the fiduciary note issue), shall include a reference to such coin as aforesaid, and the form prescribed by Schedule A to the Bank Charter Act, 1844, for the account to be issued weekly by the Bank of England under section six of that Act, as modified pursuant to section ten of the said Act of 1928, shall be further modified to such extent as the Treasury, with the concurrence of the Bank of England, consider necessary having regard to the provisions of this Act.

(3) The Treasury may by regulations make provision for modifications consequential on the provisions of this Act in provisions relating to silver coin of other enactments.

Regulations made under this subsection shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament within the period of forty days beginning with the day on which any such regulations are laid before it resolves that the regulations be annulled, the regulations shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, regulations made under this subsection shall be deemed not to be, or to contain, statutory rules to which that section applies.

6. Notwithstanding anything in section three of, or in the First Schedule to, the principal Act, as amended by section one of the Coinage Act, 1920, relating to the fineness of coins of silver, coins of silver of the King's Maundy monies made after the commencement of this Act shall be of a standard fineness of thirty-seven fortieths fine silver and three fortieths alloy, or millesimal fineness nine hundred and twenty-five:

Provided that in the making of such coins a remedy shall be allowed of an amount not exceeding millesimal fineness five.

7. In section nine of the principal Act (which authorises issues out of the Consolidated Fund for the purchase of bullion to provide supplies of coins for the public service) the reference to bullion shall include, and shall be deemed always to have included, a reference to any metal required for such supplies, and the reference in section ten of the principal Act to bullion so purchased shall be construed accordingly.

Short title,
construction
and citation.

8.—(1) This Act may be cited as the Coinage Act, 1946.

(2) This Act shall be construed as one with the Coinage Acts, 1870 to 1920.

(3) This Act and the Coinage Acts, 1870 to 1920, may be cited together as the Coinage Acts, 1870 to 1946.

Section 2.

SCHEDULE.

Denomination of Coin.	Standard Weight.		Standard Composition.	Remedy Allowance.		
	Imperial Weight Grains.	Metric Weight Grams.		Weight per Piece.		Composition.
				Imperial Grains.	Metric Grams.	
CUPRO-NICKEL—						
Crown	436·36363	28·27590	Three-quarters copper, one-quarter nickel.	2·000	·1296	1 per cent.
Half-Crown·	218·18181	14·13795		1·216	·0788	
Florin	174·54545	11·31036		·997	·0646	
Shilling	87·27272	5·65518		·578	·0375	
Sixpence	43·63636	2·82759		·346	·0224	
Threepence	21·81818	1·41379		·212	·0138	

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